



General quarter report on results of public discussions within the project “Fostering Strong and Effective Collaboration between Government and CSOs in Kyrgyzstan”

The project “Fostering Strong and Effective Collaboration between government and CSOs in Kyrgyzstan” was launched in August 2007.

In October 2007 **Public Association “Counterpart-Sheriktesh”** conducted series of round tables and public discussions all over the country: in Bishkek, Kant, Naryn, Osh, Jalalabat, Isfana and Karakol cities in the framework of the project “Fostering Strong and Effective Collaboration between government and CSOs in Kyrgyzstan” with participation of representatives of President Administration, Government of the Kyrgyz Republic, province government administrations, NGOs, business sector, professional unions and Mass Media.

Two presentations were introduced during public discussions to participant’s attention by PACS staff:

1) 1st presentation - **“Fostering Strong and Effective Collaboration between Government and CSOs in Kyrgyzstan”**. The presentation is included results of structural research on defining of best practices in the area of effective and strong collaboration development between government and CSOs in the Kyrgyz Republic at local level. So, the most substantial and edifying case studies at province and rayon levels in 7 regions of Kyrgyzstan have been revealed. The case studies have been shown general situation and history of collaboration establishment and development, key factors of success and obstacles, lessons learned and benefit obtained by partners. Based on research results 25 positive case studies of long-term and effective collaboration were reflected in published issue “Kyrgyzstan case study sourcebook: Partnership and Collaboration between Government and Civil Society Organizations” in three languages: Russian, English and Kyrgyz.

2) 2nd presentation - **«Conception of Collaboration between NGOs and State Authorities” ratified by Government of the Kyrgyz Republic resolution № 200 on 25 of April, 2004.**

The goal, main objectives, principles and forms of NGOs support by state were presented in order to be discussed.

Thus, public discussions in regions have been dedicated to social partnership issues, as one of the state development framework, carrying of reforms and modernization of the country. Round table participants have discussed quality of NGOs support by state in implementation of social policy in the Kyrgyz Republic, in particular:

- Rendering of effective assistance to socially oriented NGOs by means of active collaboration with them;
- Attracting them into decision of socially significant problems;
- Rendering of informative, consultative, methodical, organizational and technical support;
- Assistance via government social contracting.

At national level expert from the Administration of President of the Kyrgyz Republic, Mrs. T. Borombaeva, has noticed that “in the frame of Country Development Strategy for 2007-2010 is planning to realize effective partnership in social sphere at national level”. On particular, the state programme in the context of gender equality introduction and Plan of its Action for 2007-2010 were developed. Also partnership projects on elimination of child labor are successfully promoting and governmental bodies are actively attracted along with civil society organizations in their implementation”.

Participants of public discussions have noted; that for the time being almost all state programmes are to be designed with proactive collaboration of civil society. It was confirmed by all parties, that in case of project proposal development by one side (governmental or CSO) the project is founded as “lop-sided”. Thus, the main conclusion was recognition at all levels of public administration, that without partnership relations between Government and CSOs is not possible to wait forward movement of development in Kyrgyzstan.

Responsible person from State Administration of the Kyrgyz Republic, Department on application of citizens and civil society, Mr. M. Abdyl daev, has remarked: “... effort of parties should be directed to effective rule-making work at national level. Taking into consideration significance of consolidation between government and civil society, Government of the Kyrgyz Republic recently established special department on work with civil society organizations. Therefore we are opened for collaboration within our credentials.

As well I strongly recommend using more capacity of local self-government. So, in 472 local self-governments all over the country are working 1700 village headmen; they are elected by local communities. Hence it is reasonable to use their capacity and authority for detailed informing and promoting of partnership social projects”.

Participants of public discussions have highlighted timeliness and topicality of the meetings as well as perspectives of new contacts establishment including contacts between participants.

As a whole, representatives of governmental bodies, civil societies, Mass Media, business structures from 7 regions of the country took part in public discussions. Participants were very active because they are the most interested parties in the process of establishment and development of collaboration between all public sectors. Majority of attendants has noted that initiative on collaboration development between sectors is launched as a rule by civil society organizations. Representatives of governmental bodies are rarely shown the same initiative. In the opinion of discussion’s speakers at present success of joint collaboration is depending on personal relations: if parties can establish good personal relations, collaboration will be successful; if not...it means absence of collaboration. Therefore, first of all normative legal base for effective inter-sector collaboration should be optimized.

Participants in their speeches have remembered about such kind of social partnership as coordination council consisting of governmental bodies and civil society organizations under the rayon administrations. According to them, in the beginning these councils has provided good assistance in coordination of different sectors activities, but with time councils have transformed into the instrument of control and sometimes even instrument of the government dictate under NGOs and ultimately this mechanism was “destroyed”. It means, we should avoid making the same mistakes and always remember that partners have equal rights. In this case councils can be used as one of the forms of social partnership.

During the focus groups work (focus groups of representatives of NGOs, governmental and business structures, professional unions, gender, Mass Media) participants have considered obstacles of inter-sector collaboration from different points of view. In particular the following issues were discussed:

- What are uniting collaboration between different public sectors at present?
- What obstacles can be met on the way of effective inter-sector collaboration with?
- How to overcome the obstacles?

As s result of discussions each focus group (out of 33 in 7 regions of Kyrgyzstan) has identified 5 obstacles, impeding effective collaboration between government and CSOs, as well as ways of defined obstacles surmounting. General analysis of discussion results in 7 regions is enclosed.

Annex I.

General analysis of discussions' results on identification of obstacles for effective partnership between Government and CSOs and ways of their overcoming in focus groups.

Table 1. Business structure focus group results.

Obstacles, impeding effective collaboration between government and civil society	Ways for obstacles overcoming
Abusing of official proxies by governmental bodies	Increasing of legal literacy amongst population through education and dissemination of information about human rights
Incompetence of state authorities, lack of knowledge regarding their functional duties and responsibilities	Systematization during the process of job recruiting Creation of personnel reserve via job competition (in order to select nonrandom people in governmental bodies) Increasing of salary level for officials
Corruption	Adoption of efficient programmes on elimination of corruption in all structures at national level
Legal illiteracy of officials	Enlargement of educational activity: workshops, trainings, courses of qualification increasing
No transparency of governmental bodies activities	Conducting of public hearings, round tables, establishment of work groups on the main activity directions
Bureaucratic obstacles, bribery during license obtaining and legal entity registration of private enterprise	Introduction of "united window" principle
Lack of support or weak support from the side of governmental structures under obtaining of appropriate place for enterprise or office	Establishment of social partnership
Excessive interfering of government into business structures activities, frequent monitoring by taxation department, sanitarian department, law machinery etc.	- reinforcement of business structures legal literacy; - lawyer recruiting;
Intolerance, envy of governmental officials to well-off representatives of business sector	It is needed to foster understanding that funds should be earned by hard work
No protection from tax inspectorate tyranny, traffic police during crossing of goods over the borders, on the roads.	- providing of law execution by governmental structures, including inter-government agreements, - thorough investigation of facts of penalty
No healthy partnership collaboration. Business is the object for replenishment of local budget for governmental officials.	It is necessary to enlarge the frames of collaboration. To introduce elements of healthy and valuable collaboration.
Business representatives have no interest in collaboration with NGOs.	State should be initiator of effective partnership – governmental structures, NGOs and business structures. To undertake wide information campaign in order to disseminate information regarding NGO goals, objectives amongst business representatives To develop and submit ways of partnership collaboration (for instance, active promotion of socially vulnerable groups' interests via conducting of definite

	actions)
Frequent non-compliance with the legal acts by local self-government, at the same time adoption of unjust acts.	Work groups' establishment with participation of Office of Public Prosecutor and business community, and obtestation of these acts.
Corruption, reluctance of governmental officials to work for development of civil society; lack of professionalism and transparency in governmental bodies, distrust from civil society to the government	Reinforcement of civil society work on separate directions
Discrepancy of various laws. Weak control for legal acts execution.	To undertake expertise of legislation and normative legal acts in order to check their compliance and co-ordination with each other.
High tax rates. Tax collecting without any control. No transparency in the work of fiscal bodies.	To conduct advocacy campaign in partnership with fiscal bodies on reducing of taxes and effective replenishment of funds into state budget.
No co-ordination between the government and business structures. High level of corruption.	To develop plan or discuss mutually beneficial actions. To fix them via reforming of legislation.

Table 2. Government representatives focus group.

Obstacles, impeding effective collaboration between government and civil society	Ways for obstacles overcoming
Absence of general coordination of NGOs. Governmental bodies are poorly informed about NGOs activities, which organization and what sphere works in, (currently they are working in one field, tomorrow in another).	To establish body, this can coordinate activity of NGOs. It will be very comfortable to work in order to find partner rapidly among civil society organizations in definite field.
Absence of common Plan of Action for decision making on any issue between governmental institutions and profile/specific NGO.	To design joint Plan of Action.
Different level of financial capabilities and capacities of parties. This is a need to recognize that CSO representatives are more advanced, as donor organizations have provided possibility to increase their capacity via education, funds for self-actualization.	To conduct training on effective collaboration/partnership. To undertake capacity assessment of partners and define their contribution. For realization of joint plans it is necessary to attract financial resources of donors for strengthening capacity of the government representatives.
Results of realized activity, monitoring and evaluation are not summarized and discussed jointly. Although sometimes CSO activity and the government can coincide.	To introduce the system of transparency in the field of partners' activities and mechanisms of sustainable exchange of information.
Short-term of NGOs project activities do not allow to collaborate stably.	To find long-term ways/points of concern for collaboration. In particular it is not obligatory to enter into collaboration in the frame of one activity, but more reasonable to develop long-term plan of interaction according to the activities, determined in the Statute of NGO.
Low salary, incompetence of the government	To foresee increasing of salaries for state employees

personnel.	into the state budget in order to motivate them. To prepare reserve of personnel. To educate personnel.
Imperfection of normative legal acts (NLA). Absence of control for laws execution at spots, it implies ineffectiveness of the government work.	To draw out normative legal acts, adjusting legal base. To develop effective mechanisms of laws execution.
No support to NGOs from the government in accordance with Plan of Action within "Conception of collaboration between NGOs and the government" adopted by the Government of the Kyrgyz Republic regulation № 200 on 25 of March, 2004.	To develop it jointly with NGO, taking into consideration contribution of both parties.
No coordinated actions between the government and CSOs.	To conduct meetings on regular basis between CSOs and another representatives of the government, population; to undertake M&E of the government and NGOs activities.
Absence of Law, which can regulate interaction between the government and CSOs.	To develop the Law.
Lack of information about NGOs activities and interaction with LSG.	1. To inform population and local authorities about NGO activities via Mass Media on regular basis. 2. To define distinguished boundary between activity of NGO and the government.
Sometimes competition disturbs, as NGOs carry out activities of local authorities; it implies reducing of authority of LSG among population.	It is important to highlight transparency of civil society sector and the government activities on regular basis. Conducting of joint actions.
NGOs are too politicized.	NGOs should implement social projects and choose worthy of respect leaders.
Results of projects implemented by NGOs are highlighted insufficiently (no «transparency»)	Wide dissemination of information about projects realized by NGOs, in order that everybody (who is eager) can obtain it. Should be strengthening responsibility for results of work done.
At present civil society sector and the government can not be permanent partners.	It is necessary for partnership: - to conclude agreement about collaboration; - to increase responsibility of NGO leaders; - preliminary planning of joint activities.
NGOs can not be social contractors yet because of shortage of professional skills and experience at personnel (in regards of social order).	NGOs should do the following: - to provide budget transparency; - to achieve constant social execution.
NGOs do not guarantee sustainability of project results after finishing of them.	NGOs should guarantee sustainability of project results after its finishing.
Social partnership is developed weakly at spots.	To use effectively "stimulative grants" for decision pf social problems.
Poor legal base in the area of social partnership.	To fasten adoption of the law about social contracting.
Misunderstanding about the government activities from the side of NGOs.	Conducting of joint educational seminars, actions.
Not all NGOs work in the frame of their statutes, they do big bias to politics, instead	Should be provided transparent information relatively NGOs activities.

of social problems decision.	
Lack of knowledge of own empowerments by the government. Personal negative attitude to NGO sector.	- it is necessary to provide systematic education of the government representatives with legal literacy; - increasing of PR activity; - Governmental officials attracting to project implementation.
Preconceived attitude of the government to NGOs.	Partnership establishment by means of governmental officials recruiting to projects as experts/ partners.
The government does not perceive NGOs as partners (more as competitors).	PR activity of NGOs (history of success, good positive examples etc.) Knowledge and use of normative acts.
There are examples of discrepancy of NGOs activity with development strategy at local level.	Actively be involved in the process of designing of development strategy at local level.
There are quasi-NGOs, i.e. non professional, incompetence activity of such NGOs damage the image of whole sector.	There is need to: ➤ Exchange experience between NGOs; ➤ Work according to international standards adopted in non-for-benefit sector.

Table 3. Trade unions focus group.

Obstacles, impeding effective collaboration between government and civil society	Ways for obstacles overcoming
No interaction between the government and province trade unions. Lack of interaction between province and primary trade unions.	To conduct meeting of trade unions and define ways of collaboration.
No close interconnection with NGOs, local organizations and other civil society representatives.	Trade unions should identify their legal status of functioning. To organize meeting with local NGOs and to define ways of mutual collaboration.
Inactivity of laws, nonfulfillment of KR legislation, especially regarding rights and guarantees of employees; providing of social responsibility of entrepreneurship and authority, building of civilized labor relations.	Obligatory execution of laws, regulating of legislation compliance with normative legal acts. Reinforcement of responsibilities for non execution of laws. Joint lawmaking work.
Lack of responsible social partnerships for development of social standards. Lack of coordination of joint actions.	Organization of two-sided commissions for decision of common problems and objectives. Development of social dialog and partnership.
Restriction of access to the government information lack of co-education on the issues and problems of civil society consolidation.	To increase civil society capacity by means of teaching courses and seminars, attracting of youth; reinforcement of organizational and ideological work, moral education.
Lack of understanding about importance of collaboration between social partners and in different spheres (with rights and responsibilities definition).	Need to educate and explain benefit of each side into social partnership (the government, trade unions, employers, NGOs).
Absence of employer unions at the level of provinces and rayons.	Development and extension of collaboration frameworks of employers.
Absence of three-sided collaboration (social	Conducting of education for governmental structures,

partnership) at the level of provinces, rayons and village administrations.	trade unions and employers about social dialog.
Absence of collaboration hierarchy in the frame of national three-sided commission on social partnership (rayon-province-republic)	Establishment of effectively acting national network for increase of delivery effectiveness from working three-sided commission. Need to support the structures financially.
Insufficient financing of social partnership system in the frame of three-sided commission, in particular secretariat coordinators are working on the free of charge base.	

Table 4. NGO focus group.

Obstacles, impeding effective collaboration between government and civil society	Ways for obstacles overcoming
Lack of unite and coordinated plan of work	Joint development of work plans between the government and CSOs.
Lack of information about activity and plans of the government	Wide using of the government web-portals: for instance: www.gov.kg , www.batken.gov.kg and implementation of other actions directed to enforcement of information exchange.
Frequent change of local authorities and their low informing about local civil sector.	Providing of information from the NGOs side.
Corruption in the state and civil society institutions.	General introduction of transparent policy principles in management everywhere. Attracting of partners in control bodies.
Distrust from the side of the government to civil society.	To introduce mechanisms of transparency and openness. To establish ground for information exchange (consultative council). Before any project or programme launching by NGOs to conduct presentation for the government (as it was done by PACS). Representatives of governmental institutions should involve NGOs/CSOs in development and realization of state programmes.
Normative legal base exists – but no mechanisms and financial support for its realization.	To develop mechanisms of normative legal base realization on partnership.
Lack of mechanisms of NGO and government (LSG) interaction.	Social contracting. To revise law about state employees in order to involve them as experts or specialists.
Passivity of NGOs and inertness of LSG in the work doing. NGOs do not inform LSG about their work.	To discuss and define mutual beneficial cooperation. To evaluate own strengths, weaknesses and opportunities and to start joint work for decision of different objectives.
Lack of transparency of activities from both, LSGs and NGOs. No co-ordination of laws. Distrust to juridical system.	Joint discussion of plans: NGOs, LSGs, the government. Development of the joint collaboration strategy in the range from 2 to 3 years.
To balance capacity of the government and NGOs personnel.	To revise the law about state employees. To share experience with each other.

Lack of information about NGOs activities amongst governmental structures.	To achieve transparency of NGOs activities; to organize monitoring of NGOs and the government activities; to disseminate more information via Mass Media; more partnership activity between CSOs/NGOs and the government)
Lack of interest to each other activities (Gov. and CSOs).	To organize joint actions, education as well as unofficial events (congratulation, rewards)

Table 5. Mass Media focus group

Obstacles, impeding effective collaboration between government and civil society	Ways for obstacles overcoming
Censorship problem.	There is a need to execute the Law about Mass Media by the government.
Difficulties with information obtaining for its illumination by Mass Media.	There is a need to struggle with corruption and demand execution of laws.
Financial problems influenced on the quality of newspaper materials	State should render financial assistance to Mass Media.
Bureaucracy	There is a need to increase legal literacy of Mass Media staff.
Mass Media material and technical basis (weak)	It is important to renovate printing-houses, office equipments, transport (assistance in purchasing and providing)
No interest at NGOs for providing of information materials because of different reasons: - TN is not interesting and qualitative; - population does not believe in newspapers' information; - information is got by population too late	- to influence on TV programmes compilation; - to issue own information materials (bulletins, newspaper etc.); - to establish close contacts with information centers in order to provide information timely.
No special time/programme for showing of NGO activities.	To achieve choosing of special TV time/programme, to create special rubric in already issued Mass Media newspapers
Lack of PR specialists in NGOs	- Preparation of PR specialists and their recruiting by NGOs; - Organization of PR campaigns.
Lack of information about NGOs activities.	Dissemination of information about NGOs activities.
Absence of law about interaction between CSOs and the government	Adoption of the law
Lack of authentic and well-timed information to journalists by the government.	Close interaction with representatives of the government on the work with public and press-cutting services, aimed at fearless and transparent providing of information to citizens.
State Mass Media reflects events from the establisher' point of view.	To establish Steering Committee in newspaper, which is included not only representatives of the government but NGOs representatives as well.
Majority of journalists do not have possibility to criticize something, as they are threatened with court examination.	Alteration of Kyrgyz legislation in the field of Mass Media. For instance, Criminal Code of the Kyrgyz Republic is included criminal responsibility for

	criticism and express of private opinion.
Frequent ignorance of critical articles concerning the government activities by governmental bodies.	Need to: ➤ Mass Media privatization; ➤ Guarantee of protection of Mass Media rights; ➤ Making of alteration of Kyrgyz legislation
Untimely financing of newspaper issues by the government, in particular state Mass Media.	To have special account for establishment, opening and publishing of own printing issue.

1. Фокус-группа: Гендер

Obstacles, impeding effective collaboration between government and civil society	Ways for obstacles overcoming
Absence of women in Parliament and small representation in the Government of the Kyrgyz Republic	Need to improve legal base.
Weak preparation and support of women state employees.	To introduce programme of preparation personnel and reserve of state employees especially for state employees. To conduct gender analysis of personnel policy amongst state employees permanently.
Weak participation in the issues concerning gender development of village NGOs.	Training of village NGOs on gender development issues, their support by governmental authorities and international organizations.
Strong influence of stereotypes about role of women in power.	Change of relation to feminine community. Wide using of the best NGOs working experience (where leader is women).
Reinforcement of discrimination because of influence of Islam extremist trends.	It is necessary to have control and change of kyrgyz legislation on prevention all activities of prohibited Islamic trends and organizations.
Preconceived attitude of governmental structures to NGOs, especially to NGOs working on gender issues.	Conducting of joint round tables, workshops, trainings and other actions. Design of joint plans of action.
Laws in the area of gender equality are adopted, but they are not working.	Development of real mechanisms of law enforcement.
Incompetence of some representatives of the government.	Increase of young specialists' involvement into the government. Development of national ideology (fostering of patriotism sense).
Civil society misunderstanding re necessity of gender policy (they consider gender as women' issue, which is unworthy of attention).	Education, informing via Mass Media.